

The Claremont City Council held a meeting on Wednesday, July 11, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo (arrived late)
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

Assistant Mayor Allen Damren

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mayor Lovett said Application for Community Revitalization Tax Relief Program (RSA 79-E) – Goddard Block, 54-62 Pleasant Street – Public Hearing has been moved to the August 8 Council meeting.

Mr. Pope said the Santagate Bridge Signage Update is not ready tonight. The committee is still working on this.

REPORT OF THE SECRETARY

A motion was made by Mr. Pope and seconded by Ms. Kier to accept the minutes of the June 13, 2018, City Council meeting.

Voice vote: motion carried 7-0.

A motion was made by Ms. Kier and seconded by Ms. Lessard to accept the minutes of the June 27, 2018, City Council meeting.

Mr. O'Hearne said in the Non-Public session Mr. Zullo was listed as voting yes. He was not at that meeting.

Voice vote: motion carried 7-0.

MAYOR'S NOTES

Mayor Lovett thanked everyone for the 4th of July Celebration. She said she received lots of good comments.

At 6:34 p.m. Mr. Zullo arrived.

Mayor Lovett continued with her notes:

- Claremont MakerSpace Grand Opening – Congresswoman Kuster, U.S. Senator Hassan and State Senator Hennessy were in attendance.
- Received a positive email from TwinState MakerSpace co-founder, Jeremy Katz. He stated that people from all over the Upper Valley came to the Grand Opening. He offered to make a presentation to the Council. Council agreed. Mayor Lovett suggested it be in September.
- Harbor Homes contract that incorporated funding for Claremont Peer Support Recovery Center passed by Governor & Council. Now, there will be funding for the next year.
- She and Mr. McNutt will be in Concord tomorrow to testify about the Wild Goose Boat Launch. Governor's Commission is recommending to sell the property. Claremont City Council had previously re-voted to have a public boat launch on Lake Sunapee. There is concern about where the alternative location will be if the state sells this property.

CITY MANAGER'S REPORT

Mr. McNutt said the East Street Culvert Construction Project will start in 1-3 weeks (see website for information). The project is expected to last 1-2 weeks.

Mr. McNutt said New Hampshire is experiencing less than average rainfall, however, the City's reservoirs are in excellent shape. Leak detection will be used to help us save even more water. There are 35 million gallons of water in Dole Reservoir, 175 million gallons in storage at the Whitewater Reservoir and the City uses an average of 30 million gallons per month.

Mayor Lovett asked for information regarding the tunnel under the Main Street Project. Mr. McNutt can get that information.

Mr. Koloski asked what the process is for recovering Public Works resources when we go out to work on private property (i.e. Hometown Deli). Mr. McNutt said that was a Code Enforcement issue. The City has placed a lien on the property and if there is any disposition of that property, the City will be paid back first.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Energy Advisory Committee

David Putnam and Marilyn Harris had applied for seats on the Claremont Energy Advisory Committee. Both are members of the Claremont Planning Board.

Mayor Lovett said according to RSA 673:7,II Planning Board Members Serving on Other Local Boards, Planning Board members cannot serve on other municipal bodies. According to a response she received from NHMA (NH Municipal Association), the safest approach is to pull the applications from the two Planning Board Members who applied for seats on the Energy Commission. It was suggested she contact Attorney Cordell Johnston for clarification. She did and hasn't received a response. When received, she will forward that legal opinion to the Council. She said she had asked Mr. Pope to apply for the Claremont Energy Advisory Committee and he said he would consider it. She said if he agrees to it, she will look at taking his place on the Policy Committee.

Airport Advisory Board

A motion was made by Mr. O'Hearne and seconded by Mr. Pope to re-appoint Philip (Joe) Osgood, Sr., to seat 3 of the Airport Advisory Board.

Voice vote: motion carried 7-1 with Mr. Koloski voting no.

A motion was made by Mr. Pope and seconded by Mr. Stone to re-appoint David Eno to seat 2 of the Airport Advisory Board.

Voice vote: motion carried 8-0.

Claremont Community Television, Inc. (CCTV) Board of Directors

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to appoint Nicholas Maynes to seat 2 of the Claremont Community Television, Inc. (CCTV) Board of Directors.

Voice vote: motion carried 8-0.

Personnel Advisory Board

A motion was made by Mr. Pope and seconded by Mr. Zullo to appoint Patrick Howe to seat 3 of the Personnel Advisory Board.

Mr. O'Hearne pointed out that members of the Personnel Advisory Board cannot hold another political office. Mr. Howe is on the Zoning Board of Adjustment.

Mr. Pope withdrew his motion and Mr. Zullo withdrew his second. Councilors voted in the affirmative.

CITIZEN'S FORUM

Alfred Williams, President of River Valley Community College, said this year is the 50th anniversary of the college. There will be a dinner at the Common Man Inn on September 28 to celebrate. Classes start August 27.

Jeremy Hartzel, volunteer for Americorp, Dartmouth-Hitchcock program, said the recovery center is open. He talked about the gap between the time when someone decides they want to go to treatment and when space is available for them. That gap needs to be filled and safe places are needed for people to go to while they wait to enter treatment. Mayor Lovett asked if any communities are doing this well. Mr. Hartzel said he doesn't know of any. He said it is best for recovering people to have a sober living place outside of town. Their group is located at 104/105 Pleasant Street and their hours are 11 a.m.-4 p.m.

NEW BUSINESS

Ordinance 561 Change Speed Limit on Portion of South Street – First Reading

The purpose of this proposed change is to authorize limitation of speed limits on certain streets, as permitted by state law. Currently, the speed limits on all City streets are as set forth in RSA 265:60. However, state law, RSA 265:63, also allows the local community to vary these speed limits where appropriate and on a case-by-case basis. The proposal includes limitation of the speed limit on South Street by decreasing the speed limit on a portion of this street from 30 to 25 miles per hour.

Enactment of this Ordinance will reduce the speed limit on a portion of South Street to 25 miles per hour. The proposed ordinance is recommended by the Traffic Advisory Committee.

Mr. O'Hearne was concerned that the ordinance did not show the City Solicitor's certification of correct form in accordance with Council Rule 36. - Review. He also referenced Council Rule 41. - Substitute Ordinances, and stated this ordinance did not clearly identify the proposed changes.

Mr. O'Hearne asked about incorporating Middle and Broad Streets into this ordinance, changing them to 25 mph. They are currently 20 mph. Mayor Lovett remembers Police Chief Mark Chase saying this would go to the Traffic Advisory Committee in the future.

Mr. Pope asked about Council Rule 36. – Review; it states that proposed ordinances shall be prepared by the City Solicitor. He asked if the Rule should be changed to Solicitor and/or legal counsel.

Council agreed this ordinance would come back to the Council at the August 8th meeting.

Authorize Trail Maintenance

Steve Wilkie, President Sullivan County ATV Club, said the Club has been awarded funds for work on the Veteran's Park end of the Burger King Trail. They are requesting permission to bring in gravel to smooth out the trail and to add water bars to help manage water erosion.

A motion was made by Mr. O'Hearne and seconded by Mr. Stone that

WHEREAS, the Sullivan County ATV Club (SCATV Club) has requested permission to complete trail improvements on the City-owned Veteran's Park end of the Burger King Trail. This will include smoothing out the trail, putting in water bars and bringing in gravel in an effort to manage water erosion and traffic wear;

The Claremont City Council hereby authorizes the SCATV Club, at its sole cost and expense, including all labor and materials, and subject to any state or local permits, to take such actions as may be necessary to complete the trail improvements; and

As conditions for granting this authorization, the SCATV Club will:

- 1. Execute a release of liability to the City resulting from SCATV Club activities related to the trail improvements; and**
- 2. Provide before and after pictures of the completed improvements to Parks and Recreation and Public Works Departments.**

Voice vote: motion carried 8-0.

Application for Community Revitalization Tax Relief Program (RSA 79-E) – Goddard Block, 54-62 Pleasant Street – Public Hearing

Moved to August 8, 2018, Council meeting.

Resolution 2018-37 Establishment of Non-Capital Reserve for Traffic Signals – Public Hearing

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing, that

WHEREAS, the City's Capital Improvement Plan has identified that the traffic signals at the oldest of the intersections are twenty (20) plus years old and need to be upgraded and,

WHEREAS, the City needs to maintain and upgrade traffic signals for the safety of its citizens and the traveling public and doing so will take significant resources; and

WHEREAS the City would like to establish dedicated funds for this purpose and has identified \$3,835, recently encumbered in Resolution 2018-36, that would establish this account;

NOW THEREFORE BE IT RESOLVED that, pursuant to RSA 34:1-a, there is established a Non-Capital Reserve Fund for the purpose of Traffic Signals Upgrade and Maintenance and;

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. *(Majority Vote Required)*

Mr. Zullo, Finance Committee member, said the Finance Committee reviewed the resolution and recommended the Council vote in favor of it.

Mary Walter, Finance Director, said this is money that was left over at year end. Traffic signals are in the CIP (Capital Improvements Plan). This is so the money doesn't drop into fund balance. She talked about the CMAQ grant which will align the traffic signals on Washington Street in order to improve traffic flow and reduce emissions.

Fire Chief Bryan Burr gave some background information regarding the 15 controlled intersections in the City and the 9 lights on Washington/Broad Streets.

A motion was made by Ms. Kier and seconded by Mr. O'Hearne to adopt Resolution 2018-37 Establishment of Non-Capital Reserve for Traffic Signals.

Ms. Kier read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-0.

BREAK

Re-Approve Identity Theft Prevention Policy

Ms. Walter said this is an annual review of the Identity Theft Prevention Policy. There have been no changes from last year.

A motion was made by Mr. Koloski and seconded by Mr. Stone that the Claremont City Council, pursuant to the "Fair and Accurate Credit Transactions Act of 2003," the "Red Flag Clarification Act of 2010" and Federal Regulation Title 16 Part 681, hereby approves the City of Claremont Identity Theft Prevention Program and authorizes the City Manager or his designees to take such actions as may be necessary to implement said Identity Theft Prevention Program in accordance with applicable federal and state law and regulation.

Voice vote: motion carried 8-0.

Energy Policy Discussion

Mayor Lovett read from a 7/5 email that was included in the packet regarding background information for the Energy Policy Discussion. She talked about the Energy Chapter of the 2017 Master Plan and the Goals and Objectives.

Mr. Pope said he would sit on the Claremont Energy Advisory Committee.

A motion was made by Mr. O’Hearne and seconded by Mr. Stone to suspend Council Rule 47 - Suspension of Rules.

Voice vote: motion carried 6-1 with Mr. Koloski voting no and 1 abstain (Mr. Pope).

A motion was made by Ms. Kier and seconded by Mr. O’Hearne to appoint Scott Pope to seat 4, City Council representative, of the Claremont Energy Advisory Committee.

Voice vote: motion carried 7-0 with 1 abstain (Mr. Pope).

Mayor Lovett said the Committee now has as a majority (3 of 5) seats filled, so the Committee can start its work.

Mayor Lovett recommended the Council make an agenda item to adopt RSA 72:61-72, which will permit the City to offer a property tax exemption for small-scale renewable energy generation projects. Mr. McNutt will check the availability of legal counsel. Included in the Council packet was City of Concord’s resolution to adopt a goal of 100% renewable energy. She noted these were goals and were not binding. Mr. Koloski said he would be looking for definitions of kilowatt hours and how it offsets the incentive. Mayor Lovett will get examples of what other communities are doing.

Rebecca Mackenzie, Ward 2, commended the Council for this kind of visioning. There are some technical questions that have to be answered. Without incentives it’s prohibitive for some people to invest in renewable energy. She is looking forward to how the Energy Committee can be helpful moving this policy forward. She has a folder of resolutions of what is being done throughout the country and would be glad to share that information with the Council.

Regarding the energy audit that was done in 2011, Mayor Lovett would like a report of what has been accomplished and what is outstanding.

Mr. Koloski asked if Council can highlight each of these success stories at the beginning of Council meetings. There were no objections.

Santagate Bridge Signage Update

Withdrawn

COMMITTEE REPORTS

Mr. Pope said he had sent information from the HDC (Historic District Commission) on 39 Central Street to Mayor Lovett. She will send it to Ms. Russell for distribution to the Council.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope asked for an update on the Rail Trail waiver. Mr. McNutt said he will follow-up.

Mayor Lovett asked for an update in September on landlords that have not been abiding by ordinances. She asked for the status of money the City has realized through these efforts; any money deposited into the reserve account for demolition. Mr. McNutt said the City just had an auction of tax deeded properties. He'll meet with Lisa Richmond, Treasurer, to see if the money has been received. He said some issues have not been fully resolved, so this may have to be done in a nonpublic session.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:04 p.m., a motion was made by Mr. Pope and seconded by Mr. Stone to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council